

25STCV20821 25STCV20821

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-23

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Case Number: 25STCV20821 Hearing Date: July 23, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: July 23, 2026 TRIAL DATE: November
16, 2027

CASE: Justin Callos v. Fridman Family Dental Care PC, et al.

CASE NO.: 25STCV20821

MOTION

FOR LEAVE TO AMEND COMPLAINT TO ADD IGOR FRIDMAN AS A DEFENDANT UNDER LABOR
CODE § 558.1

MOVING PARTY: Plaintiff

Justin Callos

RESPONDING PARTY(S): None

PROOF OF
SERVICE:

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Correct Address: Yes.

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16/21 (CCP § 1005(b)): (1)-(2) OK.

Served electronically on June 18, 2026, for a hearing date of July 23, 2026.

CASE

HISTORY:

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07/15/25: Complaint filed.

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09/23/25: Answer filed.

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06/18/26: Motion for Leave to Amend

Complaint to Add Igor Fridman as Defendant filed.

STATEMENT OF

MATERIAL FACTS AND/OR PROCEEDINGS:

In this employment law action, Plaintiff Justin Callos ("Plaintiff") alleges, among other things, that Defendants Fridman Family Dental Care PC and Dr. Nardys Fridman hired him as a dental hygienist but failed to pay him all wages owed.

Plaintiff moves to fix minor formatting issues in the Complaint and to add another individual, Igor Fridman ("Fridman"), as a defendant. The motion is unopposed.

TENTATIVE

RULING:

Plaintiff's motion for leave to amend is GRANTED. Plaintiff is ordered to file and serve the proposed FAC within ten (10) days of this ruling.

Moving party to give notice.

DISCUSSION:

Motion

for Leave to Amend Complaint

“The court may ..., in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).)

California Rules of Court (“CRC”), rule 3.1324(a) requires a motion to amend a complaint to: “(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; ¶ (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and ¶ (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

Plaintiff’s motion has complied with the above requirements. (Motion, pp. 4:15-6:2 [explaining which allegations will be added and deleted in the proposed First Amended Complaint (“FAC”)]; Declaration of Christina R. Manalo, filed on June 18, 2026 (“Manalo Decl.”), ¶ 2; Exhibit 1– a redlined version of the FAC showing the additions and deletions; Exhibit 2 – a copy of the FAC without redlines.)

The CRC also requires the motion to be accompanied by a separate declaration that specifies: “(1) The effect of the amendment; ¶ (2) Why the amendment is necessary and proper; ¶ (3) When the facts giving rise to the amended allegations were discovered; and ¶ (4) The reasons why the request for amendment was not made earlier.” (CRC, rule 3.1324(b).)

Plaintiff has also complied with that requirement by separately filing his counsel’s declaration, which attests to the following facts. “Labor Code Section 558.1 extends liability for wage and hour violations to an owner or officer of the employer defendant, and supports the proposed amendments.” (Manalo Decl., ¶ 10.) “On February 20, 2026, Plaintiff obtained information from Defendant’s own verified discovery responses, which confirm that Igor Fridman was a managing agent of the employer.” (Id. ¶ 9.) “Because Mr. Fridman was an owner, officer, director and/or managing agent of Defendant Fridman Family Dental Care during Plaintiff’s employment who Plaintiff alleges

violated or caused to be violated the Labor Code violations he suffered during his employment with Fridman Family Dental Care PC, this amendment to the Complaint, to add Igor Fridman as a Defendant is therefore necessary and proper under Labor Code Section 558.1 for Plaintiff to pursue his claims. This amendment is necessary because Plaintiff will potentially be without recourse to recover earned and overdue wages owed to him if Defendant Fridman Family Dental Care, PC subsequently files for bankruptcy, and if Igor Fridman is not added as a defendant.” (Id. ¶ 10.) “Plaintiff’s counsel only became aware of this information on or about February 20, 2026.” (Ibid.)

“Ordinarily, leave to amend a complaint should be liberally granted unless the opposing party would be prejudiced by the amendment. [Citation.] Leave to amend a complaint is properly denied, however, if the facts are undisputed and the proposed amendment would not establish a basis for liability as a matter of law.” (Komorsky v. Farmers Ins. Exchange (2019) 33 Cal.App.5th 960, 971.)

Here, no opposition has been filed arguing that (1) the current defendants will be prejudiced by the amendments or (2) the proposed amendment will not establish a basis for liability against the proposed defendant.

Accordingly, Plaintiff’s motion for leave to amend is GRANTED. Plaintiff is ordered to file and serve the proposed FAC within ten (10) days of this ruling.

Moving party to give notice.

IT IS SO ORDERED.

Dated: July 23, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later

than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.